

EMPLOYER & EMPLOYEE AGREEMENT

Employer

Business Name: _____

Address: _____

Phone Number: _____ Fax Number: _____ Email Address: _____

Employee

Business Name: _____

Address: _____

Phone Number: _____ Fax Number: _____ Email Address: _____

The Parties agree as follows:

1. Duration of Contract

This contract shall have duration of _____ months from the date THE EMPLOYEE assumes his/her duties. The "TERM OF EMPLOYMENT").

Both parties agree that this contract is conditional upon THE EMPLOYEE obtaining a valid work permit pursuant to the Immigration Regulations.

2. Job Description

THE EMPLOYEE agrees to carry out the tasks as outlined in their job title/description.

3. Work Schedule

THE EMPLOYEE shall work _____ hours per week. He/she shall receive _____ % more than the regular wages for any hours worked over this limit. His/her workday shall begin at _____ and end at _____ or, if the schedule varies by day, specify:

THE EMPLOYEE shall be entitled to _____ minutes per day of break time for lunch, coffee breaks etc.

THE EMPLOYEE shall be entitled to _____ day(s) off per week, on _____

THE EMPLOYEE shall be entitled to _____ weeks of paid vacation.

THE EMPLOYEE shall be entitled to _____ days of sick leave per year.

4. Wages and Deductions

THE EMPLOYER agrees to pay THE EMPLOYEE, for his/her work, wages of \$ _____ per week, or \$ _____ per hour.

These shall be paid at intervals of _____

THE EMPLOYER is responsible for Income Tax Withholding, Social Security and Medicare taxes and Federal Unemployment Tax Act (FUTA).

THE EMPLOYER is responsible for depositing income tax withheld and both the employer and employee social security and Medicare taxes.

THE EMPLOYER shall not recoup from The Employee, through payroll deductions or any other means, any costs incurred in recruiting or retaining The Employee. These include, but are not limited to, any amounts payable to a third-party recruiter.

If applicable, The Employer agrees to review and adjust (if necessary) The Employee's wages after 12 months of employment, to ensure they meet the prevailing wage rate for the occupation in the region.

5. Mileage Expenses

THE EMPLOYER agrees to pay The Employee _____ per mile for use of their own vehicle in the performance of their duties.

6. Workers' Compensation

THE EMPLOYER agrees to register THE EMPLOYEE under the appropriate state Workers' Compensation insurance plan.

THE EMPLOYER agrees not to deduct money from THE EMPLOYEE'S wages for this purpose.

7. Notice of Resignation

Should he/she wish to terminate the present contract, THE EMPLOYEE agrees to give THE EMPLOYER written notice thereof at least one week in advance.

8. Notice of Termination of Employment

THE EMPLOYER must give written notice before terminating the contract of THE EMPLOYEE if this employee has completed 3 months of uninterrupted service with THE EMPLOYER and if the contract is not about to expire. This notice shall be provided at least one week in advance.

9. Non-Solicitation of Clients

THE EMPLOYEE agrees not to solicit or accept independently any clients of THE EMPLOYER during their employment with THE EMPLOYER and for a period of _____ after termination of employment with THE EMPLOYER.

CONTRACT SUBJECT TO STATE LABOR AND EMPLOYMENT LEGISLATION

THE EMPLOYER is obliged to abide by the standards set out in the relevant state labor standards act. In particular, THE EMPLOYER must abide by the standards with respect to how wages are paid, how overtime is calculated, meal periods, statutory holidays, annual leave, family leave, benefits and recourse under the terms of the Act. Any terms of this contract of employment less favorable to THE EMPLOYEE than the standards stipulated in the relevant labor standards act is null and void.

IN WITNESS WHERE OF the parties state that they have read, understand and accepted all the terms and conditions stipulated in the present agreement/contract.

Employee's Signature

Date

Employer's Signature

Date